

24STCV14354 24STCV14354

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Case Number: 24STCV14354 Hearing Date: July 7, 2026 Dept: 510

No.

13 – Payam Benyamini v. Lundquist Institute for Biomedical Innovation at Harbor-UCLA Medical Center, et al.

Defendant

Lundquist Institute for Biomedical Innovation at Harbor-UCLA Medical Center's Motion to Compel Written Responses and Produce Documents to Supplemental Requests

Defendant

Lundquist Institute for Biomedical Innovation at Harbor-UCLA Medical Center moves for an order compelling Plaintiff Payam Benyamini to provide responses to its supplemental requests for production.

A

party must respond to written discovery "[w]ithin 30 days after service." (Code Civ. Proc., § 2031.260(a).) When the responding party fails to serve a timely response to interrogatories or requests for production, the requesting party may move for an order compelling responses. (Code Civ. Proc., § 2031.300(b).)

On June 17, 2026, the parties discussed this issue with the Court at an Informal Discovery Conference. Plaintiff promised to produce native files of an overtime list and overtime calendar in response to the requests. Plaintiff also agreed at the IDC to provide a verified response to the supplemental requests by June 29, 2026. Defendant indicates that, since the IDC, Plaintiff has only served the two native file documents, and no responses to the supplemental discovery. (Supp. Grutman Decl., ¶¶ 4-5.) Plaintiff did not oppose the motion to compel responses to the supplemental discovery. Therefore,

the Court will order Plaintiff to serve verified responses without objection to Defendant's supplemental requests.

Sanctions

Defendant

also requests monetary sanctions against Plaintiff. Code of Civil Procedure section 2031.300(c) provides, "[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Plaintiff failed to provide verified responses by the deadline, and failed to do so again even after promising to do so at the Informal Discovery Conference. There is no evidence that Plaintiff acted with substantial justification.

The

Court finds sanctions are appropriate. Defendant did not, however, reasonably incur \$2,510 in expenses in preparing this motion. (Grutman Decl., ¶ 7.) The Court exercises its discretion to reduce the hours requested by Defendant by one-half. 4.5 hours at a rate of \$270 per hour is \$1,215. The Court will also award the \$80 filing fee.

Disposition

Defendant

Lundquist Institute for Biomedical Innovation at Harbor-UCLA Medical Center's motion for an order compelling Plaintiff Payam Benyamini to provide responses to its supplemental requests for production is granted.

Plaintiff

Payam Benyamini is hereby ordered to serve verified responses without objection to Defendant's supplemental requests within 10 days.

Plaintiff

and his counsel are further ordered to pay Defendant \$1,295 in sanctions to Defendant in 21 days.